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Court

SINDH HIGH COURT

Date

2011-12-08

Appeal No.

CRIMINAL REVISION APPLICATIONS NOS. 144, 145 OF 2009 AND 48 OF 2010

Judge

AQEEL AHMED ABBASI

Parties

MRS. GHAZALA PARVEEN APPLICANT VERSUS SADIQ DANIEL AND 18 OTHERS
RESPONDENTS

Lawyers

MRS. BENYSH QURESHI FOR APPLICANT. FAROGH NASEEM AND KHURRAM IQBAL FOR
RESPONDENTS. MUNTAZIR MEHDI, A.P.-G. FOR RESPONDENT NO. 19.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 497, 497(5) AND 498 CRIMINAL
PROCEDURE CODE (V OF 1898) - S. 498 CRIMINAL PROCEDURE CODE (V OF 1898) - SS.
497(2)(5) AND 498 PENAL CODE (XLV OF 1860) - SS.354 AND 354-A CRIMINAL
PROCEDURE CODE (V OF 1898) - SS. 497(2) AND 497(5) CRIMINAL PROCEDURE CODE (V
OF 1898) - S. 498 PENAL CODE (XLV OF 1860) - SS.354 AND 354-A

Judgment

AQEEL AHMED ABBASI, J.- The above referred three Criminal Revision Applications, emanating from same incident, for which three different F.I.Rs. have been registered, are disposed off through this common judgment.

2. Criminal Revision Application No. 144 of 2009 has been filed by the applicant on being aggrieved and dissatisfied with the order dated 5-9-2009 passed by the learned 1st Additional Sessions Judge Karachi South in Criminal Bail Application No. 141 of 2008 whereby the learned Judge has dismissed the application for Cancellation of bail. Similarly, Criminal Revision Application No. 145 of 2009 has been filed by the applicant on being aggrieved and dissatisfied with the order dated 5-9-2009 passed by the learned 1st Additional Sessions Judge Karachi South in Criminal Miscellaneous Application No.59 of 2007 whereby consequent to order passed in Criminal Bail Application No. 141 of 2008, the learned Judge has disposed of the application for pre-arrest bail as not pressed. Whereas Criminal Revision Application No.48 of 2010 has been filed by the applicant on being aggrieved and dissatisfied with the order dated 1st March, 2010 passed by the learned 1st Additional Sessions Judge Karachi South in Sessions Case No. 742 of 2006 whereby an application moved by DDPP to take all the respondents accused persons into custody was dismissed. Since the fate of Criminal Revision Application No.48 of 2010 is dependent upon the decision in Criminal Revision Application Nos. 144 and 145 of 2009, therefore, it will be dealt after the decision in the above referred two revision applications.

3. It is pertinent to note that all the three cases arise from the orders passed in F.I.R. No. 169 of 2005, which according to learned counsel for the applicant, contains the true facts, therefore, it will be advantageous to reproduced the contents of F.I.R.

No. 169 of 2005, which read as follows:- "I am residing at the address mentioned in Column No. 2 along with my family and husband and I am serving as the Administrator of Brenton Carey Girls Hostel, situated at 247 Staff Lines, Fatima Jinnah Road, Karachi, for last four years. From the last one year Bishop Sadiq Daniel who is residing in the Trinity Church Compound along with his family wanted to terminate me from my job but my Management Committee was not agreeing for the same. On ' 11-4-2005 Bishop Sadiq Daniel at 9-30 a.m. along with a group including Shahzar Shamoon, Zafar Iqbal, George Bhatti, Claventina Burdge, Pervaz Barkat, Raj Kumal, Saith Gill, Javed Alam, Riaz Boota, Simon John, Anwar Sardar, Emmanuel Victor, Anwar Lai Din, Irfan Sharif James Sardar and their 20/25 accomplices, to whom I can identify if brought forward, they with intention to occupy the Hostel entered inside, watchman informed me from main gate through Intercom Telephone, I locked the doors of Hostel and in this regard informed my staff, after some while there was knock on the Accounts Office of the Hostel, I saw from the window where Sadiq Daniel, Shahzar Shamoon, George Bhatti, Zafar Iqbal, Claventina Burdge, and other people as well as some workers of Dar-ul-Khushnud were standing and they started to break the door, I immediately approached in my office and for assistance called on 15 emergency number and informed them about the incident and on phone they also heard the sound of breaking of the doors, after some while they broke the door of Accounts Office and thereafter started to break the center door of my office, I ran inside the Hostel where students of Class IX and X were present for preparation of their Board Examination while remaining students were in their respective schools. I hid himself in the store room till 45 minutes, while they searched for me everywhere, after 45 minutes they found me and caught me, Claventina Burdge, slapped me on my face thereafter started beating me with kicks and fists. George Bhatti and Zafar Iqbal were shouting saying kill her. At that time students of Class IX and X came and snatched me from their hands and took me to the prayer room and locked the door, on which accused persons started to break the doors of prayer room but the students resisted for about 2-1/2 hours and not allowed them to enter inside, on which they gathered all their people who were

between 30 to 40 and they broke the prayer room door. The girls were shouting that Madam Ghazala is our mother and you cannot take her. The personal guard of Sadiq Danial namely Sajid loaded his gun and directed towards the girls and told the girls to hand over Ghazala otherwise he will open the fire, the girls said you fire on us or kill us but we will not let Ghazala go. Having failed to grab me he dropped his gun and went out. Then Zafar Iqbal, George Bhatti, Clavintina Berge along with others came forward and started beating the girls with kicks and fists and also pulled the hairs of girls and torn their clothes and abused with bad words and took away all the girl students away from there. George Bhatti, Zafar Iqbal and Clavintina Berge dragged me out of the prayer room, beating all the way long to the playground where Sadiq Daniel, Shahzar Shamoon and others were standing. Sadiq Danial commanded George Bhatti take off her clothes. Zafar Iqbal took my shirt (qamiz) upwards and George Bhatti pulled down my shalwar, I begged George Bhatti to have pity on me for the sake of your own daughter Lubna. He said you could not be my daughter I will make you fully naked. Then they started hitting my sensitive organs and naked legs. Clavintina Berge bit me on the shoulder and tried to forcibly obtain my signatures on some unknown writings/ documents, when I refused; again they started beating me. At that time Mr. Sher Gill and Mrs. Pamela Shakti arrived there, they also pressurized me to put signatures on the unknown writings, which I once again refused and they continued to beat me. After 6 hours on the intervention of elders and respected people of Christianity I was rescued from them. All the above mentioned accused persons with common intention and object tortured me, attacked the Hostel, exposed me naked to the public view by stripping me off my clothes and humiliated the girl students and tortured them, broke the doors of Hostel and without permission entered inside and given me threats to kill and they are still illegally occupying the Hostel. All the above mentioned was done on the order and active participation of Sadiq Daniel and Shahzar Shamoon. On the basis of Inquiry Police lodged the F.I.R. where State was complainant but I was not satisfied with the F.I.R., on which I moved C. P. No. 1289 of 2005 in the High Court of Sindh, in which High Court of Sindh issued directions to take action on my statement. Today I along with my husband Reverend Shafique Kanwal came at Police Station, my claim against the above mentioned accused persons is to outraging my modesty. I request for legal action. Report heard and found correct." 4. Learned counsel for the applicant has contended that from record it may be seen that applicant/complainant Mst. Ghazala Shafiq instantly reported the matter to CPLC and was sent for medical examination on the fateful day when the incident took place. Her medical examination was conducted on the same day, whereas report of Medico-legal Centre stated as follows:- ' (1) Diffuse swelling of right thumb.

On examination movement painful, tenderness present.

(2) Complaint of pain over right shoulder. On examination movement painful, mild tenderness present.

(3) Complaint of pain over left lower part of leg. On examination tenderness positive. Movement painful.

(4) Complaint of pain over lower incisor. On examination mild pain.

(6) Bruises of size 10 x 08 c.m on right thigh.

(7) Bruises over left lower leg size 6 x 4 and 1.5x1 c.m.

According to the applicant, no F.I.R was registered to this effect, on the contrary, an F.I.R No.44 of 2005 was lodged on 13-4- 2005 at 1630 hours at Frere Police Station, Clifton Town, Karachi, in which complainant Naureen Sarfaraz, a lady constable reported that on the day of incident she

and another lady police constable were posted inside the gate of Breton Carey Girls Hostel when at about 12-30 hours Mst. Ghazala Shafiq in a company of 15 to 20 girls started ruckus, tore their own clothes, gave fists and kicks blows to both lady constables, when they attempted to stop them they tore uniform of lady constable Nighat Parveen. It was further alleged that as a consequence the complainant lady constable suffered miscarriage of her two months baby.

5. Per learned counsel, since no F.I.R of the complainant was being registered, the applicant held a Press conference to this effect on 12-4-2005, which was published in large number of newspapers on 13-4-2005 wherein the applicant narrated the entire facts. The Christian community of the city condemned the incident and protested against the conduct of the accused persons and the police, whereas the entire incident was highlighted in the print and electronic media as well. The applicant approached various high officials of the Government including President and Prime Minister. Whereafter the CCPO, Karachi appointed Mr.Sanaullah Abbasi as Incharge of Inquiry Board to conduct inquiry of the incident. The applicant appeared before such Inquiry Board. Her statement was recorded, whereas statement of other P.Ws. including Rukhsana Naseem, Roma George, Surriya Anthony, Huma Younus, Bishop Ejaz Inayat, Saba Younus, Nargis Shamsher, Shamila Afroze, Zarafshan Haroon and others were also recorded. Consequently, the Inquiry Report was submitted on 21-5-2005, wherein following findings and recommendations were given:- "FINDINGS (i) This is a fact that people entered the girls hostel, broke the doors open, dragged Mrs. Ghazala Shafiq outside, manhandled her and outraged her modesty.

(ii) Both parties did not act in a legal/ desirable way to resolve their disputes. The matter should have been either resolved/arbitrated by the court or by themselves according to the Constitution of the Diocese of Karachi. Police should have played their pro active role in resolution of matter.

RECOMMENDATIONS OF ENQUIRY BY MR. SANAULLAH ABBASI.

(i) A criminal case under the relevant sections of the law may be registered for outrage of modesty.

(ii) Local police may be warned for not being pro active.

(Hi) Role of lady police will be determined later on, as the case has been registered. The enquiry is under way. Why lady police was called and no male member of the force was sent with them when male members of Christian community were present at the spot. It is intriguing on the part of local police." 6. Per learned counsel for the applicant, instead of following recommendations as contained in the Inquiry Report an F.I.R.

bearing No.87 of 2005 was registered on behalf of the State on 27-6-2005 against unknown persons. Since the applicant was not satisfied with registration of the F.I.R. lodged by the police, she approached the Home Secretary for proper inquiry into the matter who directed another inquiry to Additional Inspector General Police (Investigation) Mr. Nayyer Hasnain, who after examining the complainant and the witnesses completed the inquiry and reached to the following conclusion: "CONCLUSION From the statements of the Complainants and witnesses it is quite clear that the incident of forcible evacuation of Mst. Ghazala Shafique did take place on 11-4-2005. Although police was informed that there is likelihood of disturbance no action was taken by police, it remained silent spectator while Mst. Ghazala Shafique (administrator) of Brenton Carey hostel was forcibly evacuated from her office. Whether any legal procedure was followed to terminate the services of Mst.

Ghazala Shafiq was beyond the mandate of this enquiry.

After the incident had taken place the complainant Mst. Ghazala Shafique tried her best to get the F.I.R. registered but her Complaint was not entertained by police, instead two cases have been registered on behalf of the State. It is quite surprising to note as to why her F.I.R. was not registered.

The background of the incident appears to be the tussle between Mr. Sadiq Danial and Mr. Ejaz Inayat for the position of Bishop but this particular incident of 11-4-2005 took place in the presence of police. The complainant Mst. Ghazala Shafique, Administrator, Brenton Carey hostel may be exaggerating the actual incident but forcible evacuation from her office did take place for which her complaint should have been registered. The role of police is also not above board it appears they were trying to help in the evacuation.

It is recommended that the cases already registered may be handed over to some impartial officer/agency for investigation and case of Mst. Ghazala Shafiq may also be registered." The applicant filed a Constitution Petition No.D-1289 of 2005 before this Court, seeking registration of F.I.R. Petition was allowed and the police was directed to record the statement of complainant and register an F.I.R. if cognizable offence is made out.

Accordingly, F.I.R. No. 169 of 2005 was registered against the respondents.

7. On registration of above F.I.R. No. 169 of 2005 the accused persons moved applications for bail before arrest bearing Criminal Bail Application No. 1019 of 2005, Criminal Bail Application No. 1048 of 2005 and Criminal Bail Application No. 1051 of 2005 before the learned Sessions Judge Karachi South, who granted ad interim pre-arrest bail to the respondents, whereafter vide order dated 4-1-2006 pre-arrest bail granted to the respondents was duly confirmed. Per learned counsel, interim charge-sheet was submitted on 23-12-2005 without recording the statement of the complainant and her witnesses. The complainant challenged such: improper investigation and submission of challan. Whereafter CCPO Karachi vide order dated 20-1-2006 constituted three members Board comprising DIGP (Investigation-II) and 2 SSPs, which was later enhanced to 5 members comprising DIGP (Investigation-II) and 4 SSPs to deliberate on the investigation and to- give recommendations for re-investigation of the case.

However, per learned counsel, in utter disregard to the above directions the concerned S.-I. Noor Sabir submitted final challan on 21-1-2006. The Board so constituted recommended re-investigation of the case. Whereafter 42 witnesses were examined and consequently final challan was _ submitted on 25-5-2006 wherein section 354-A, P.P.C. was substituted by section 154, P.P.C.

Per learned counsel, in the challan section 354-A, P.P.C. was omitted, although eight eye-witnesses supported the case of the complainant. The complainant moved an application under section 190(2), Cr.P.C. before the learned Magistrate, who allowed the same vide order dated 28-10-2006. Per learned counsel, such order has not been challenged hence still in force. After inclusion of section 354-A, P.P.C. the applicant moved an application before the learned trial Court for taking the accused persons into custody on the ground that the accused persons are not on bail under section 354-A, P.P.C., but no order was passed by the learned trial Court. Applicant moved Criminal Miscellaneous Application No.59 of 2007 before the learned Sessions Judge Karachi South for cancellation of bail granted to the accused persons on 4-1-2006. Since no order was being passed on above application, the applicant invoked the extraordinary jurisdiction of this Court seeking directions to the trial Court to pass appropriate orders on pending application. Whereafter, arguments on application for cancellation of bail i.e. Criminal Miscellaneous Application No.59 of 2007 were heard by the trial Court and the case was fixed for

order on 2-2-2008. In the meantime. Deputy District Attorney on 21-1-2008 filed an application before the trial Court for custody of the accused persons stating therein that the accused persons are not on bail under section 354-A, P.P.C. Accused persons in the meantime obtained protective bail from this Court vide order dated 1-2-2008. On 2-2-2008 the accused persons moved an application before the trial Court for dismissal of Criminal Miscellaneous Application No.59 of 2007 on the ground that the accused persons have been granted protective bail by High Court vide order dated 1-2-2008.

Such order was assailed by the applicant by filing Criminal Petition No.22-K of 2008 before the Hon'ble Supreme Court. During pendency of such petition, the accused persons filed Criminal Bail Application No. 141 of 2008 before the learned trial Court.

However, during pendency of such bail application the accused persons moved Criminal Bail Application No. 172 of 2008 before the High Court and vide order dated 25-2-2008 interim bail was granted to the accused, persons. The Hon'ble Supreme Court under the circumstances disposed of the matter vide order dated 16-1-2009 with directions to the parties to approach the Court below. On 2-7-2009, this Court in Criminal Bail Application No. 172 of 2008 directed the learned trial Court to decide the Criminal Bail Application No. 141 of 2008 and Criminal Miscellaneous Application No.59 of 2007 within two months. Pursuant to which directions, both the above matters i.e. Criminal Miscellaneous Application No.59 of 2007 and Criminal Bail Application No. 141 of 2008 were heard and disposed of by the trial Court vide impugned order dated 5-9-2009 whereby learned trial Court dismissed the Criminal Miscellaneous Application No.59 of 2007 filed by the applicant/complainant and disposed of Criminal Bail Application No. 141 of 2008 as not pressed by the accused persons.

8. In the earlier round of proceedings, both these revision applications were heard and disposed of by learned Single Judge of this Court vide combined judgment dated 25-1-2010 in the following terms.- .

"50. There are 18 accused persons.

Role of every one of them is not identical. They, as far as offence under section 354-A is concerned, fall into four categories:~ (i) Respondent No.1 allegedly commanded respondent No.3 to strip the complainant; (ii) Respondents Nos. 2 and 3 who it is alleged respectively pulled up shirt and pulled down shalwar of the complainant; (iii) Respondent No. 5 who allegedly bit the complainant on her shoulder; (iv) Other private respondents who were cam followers or by standers or who made hay of insult and disgrace of the complainant while sun of infamy shone.

51. Result of the above discussion is, following Sarfraz Khan's case (supra), that impugned order dated September 5, 2009 and

4-1-2006 are set aside, bail applications of respondents Nos.1, 2, 3 and 5 are dismissed and interim bail granted to other respondents is- confirmed. Criminal Revision Applications No. 144 and 145 of 2009 are disposed of in the above terms." 9. Being aggrieved and dissatisfied with the above judgment of this Court in Criminal Revision Applications Nos. 144 and 145 of 2009, respondents Nos.1, 2, 3 and 5 preferred Criminal Petitions Nos.30-31 of 2010 before the Hon'ble Supreme Court, which were converted into appeal and disposed of by the Hon'ble Supreme Court vide short order dated 24-2-2010 whereby the judgment passed by the learned Judge of this Court to the extent of petitioners was set aside and the cases were remanded to this Court for fresh decision. However, while setting aside the judgment, it was observed by the Hon'ble Supreme Court that bail granted to the petitioners by Sessions Judge Karachi South vide short order dated 4th January, 2006 in F.I.R. No. 169 of 2005 registered at Police Station Frpre, Clifton

Town, Karachi under sections 147, 148, 337-A(i), 506-B, 354-A, P.P.C. is kept intact till decision of High Court. In the short order, the Hon'ble Supreme Court further observed that initially section 354-A, P.P.C. was mentioned in F.I.R. No. 169 of 2005 dated 16th December, 2005 but subsequently section 354-A, P.P.C. was omitted, however, the Magistrate while taking cognizance of the case vide order dated 28th October, 2006 added section 354-A, P.P.C. as well. It was further observed that the said order is still intact and had not been challenged. It was further observed by the Hon'ble Supreme Court that since the petitioner and coaccused Zafar Iqbal did not press the application for grant of bail under section 354-A, P.P.C., as such they cannot be treated to be on bail by any Court under this section, therefore, to this extent law will take to its course accordingly. Thereafter, the Hon'ble Supreme Court while recording the reasons has remanded the case to this Court for fresh decision in Criminal Revision Applications Nos. 144 and 145 of 2009 in the following manner:- "13. We, therefore, by our short order noted above set aside the impugned order to the extent of petitioners and remanded the case to High Court for fresh decision of Criminal Revision Applications Nos. 144-145 of 2009 holding that the petitioners and co-accused Zafar Iqbal cannot be treated on bail by any court under section 354-A, P.P.C. and that the law will take its course accordingly. Since the case law cited by learned counsel in this situation became irrelevant, the discussion as to that being an academic discourse, shall be an exercise in futility. These are the reasons for our short order." 10. Learned counsel for the applicant has vehemently argued that the respondents/accused have committed a heinous crime on the fateful day, which is punishable with death or life. However, per learned counsel, by abusing the process of law and with the active connivance of the police officials they have managed to avoid the rigours of the law so far. Per learned counsel, there is no denial to the fact that the alleged incident took place on the fateful day, but the accused persons are attempting to distort the actual facts by exercising their influence over police and by issuing threats to the complainant and her family, as well as prosecution witnesses. Per learned counsel, the impugned order has been obtained by misrepresentation of facts, as the learned trial Court has not taken into account the material collected during the course of investigation. It is contended that the contents of F.I.R No. 169 of 2005 are duly corroborated by the statement of prosecution witnesses including eyewitnesses recorded under section 161, Cr.P.C., whereas the inquiry conducted by the senior police officials also support the case of complainant. Per learned counsel, on taking the complete stock of the material available on record and the events stated hereinabove, it may be seen that the accused persons are fully implicated in the instant crime and under no circumstances were entitled to concession of pre-arrest bail which is otherwise based on misconceived facts. It is contended by learned counsel for the applicant, that prima facie case is made out against the accused persons, who have outraged modesty of complainant in the eye of public at large, therefore, the pre-arrest bail granted to the accused persons is liable to be cancelled and the accused persons are required to be apprehended by the police to face trial. While concluding her arguments the learned counsel for the applicant has also readout the statements of some of the prosecution witnesses recorded under section 161, Cr.P.C. including the statement of P.Ws Shamsunnisa, Surraya Anthony, Zarish Aziz, Zarafshan Haroon, Shumaila Afroze, Saba Younus and Daisy John. In support of her contention, the learned counsel for the applicant has placed reliance on the following reported judgments, (i) Sarfraz Khan v. The State and 2 others PLD 1988 SC 726, (ii) Mst.Zaitoon v. M. Riaz and 3 others PLD 1996 (Peshawar) 30, (iii) Allah Ditta v. The State 2003 MLD 1848, (iv) Naveed v. The State 2004 YLR 2392, (v) Mst. Qudrat Bibi v.

Muhammad Iqbal and others 2003 SCMR 68, (vi) Gul Zaman v. The State 2004 YLR 3335, (vii) Muhammad Safdar v. The State 1983 SCMR 645, (viii) Muhammad Azam v. The State 1996 SCMR 71, (ix) Arif Matin Bhutta v. The State PLD 1983 Lah. 383, (x) Rana Muhammad Arshad v. Muhammad Rafique and another PLD 2009 SC 427 and (xi) Faqir Muhammad and 2 others v. The State 2010 YLR 457.

11. Conversely, learned counsel for the respondents/accused has supported the impugned order for having been passed in accordance with law. It is contended by the learned counsel that the applicant, with ulterior motives and mala fide intention, has attempted to drag the respondents who are all respectable citizens of Christian Community in Pakistan including Bishop of the Church, into a false case in order to cause harm and injury to their reputation. Per learned counsel, the facts as narrated by the learned counsel for the applicant are false and distorted, whereas the applicant in an attempt to perpetuate her illegal possession as Administrator of the Breton Carey Hostel has concocted the entire story. While narrating the facts in his own words learned counsel for the respondents submitted that applicants and the respondents are Christian by faith and follower of Anglican Protestant denomination. Their Church is called Church of Pakistan. There is a Bishop of Pakistan, who heads the Church of Pakistan, Church of Pakistan is divided into 8 dioceses. Diocese of Karachi encompasses Karachi and Balochistan. A Dutch gentleman was Bishop of Karachi for a long time. He expired and office of Bishop of Karachi became vacant. Elections were held in 1997 and respondent No.1 i.e. Sadiq Dainel and one Ejaz Inayat were candidates for election of Office of Bishop of Karachi respondent No.1 alleged rigging in the election. A suit was filed in the High Court. Status quo was ordered by the High Court in the suit and finally suit was disposed of on the basis that a fact finding inquiry shall be held under the orders of Archbishop of Canterbury and thereafter result of such inquiry shall be followed. That inquiry recommended fresh elections. Fresh elections were held on 4-2-2002 and respondent No.1 was elected as Bishop of Karachi. This was done in accordance with the order passed by this Court in Civil Suit No. 1454 of 1997 on 28-1-2002. In Suit No.996 of 2002 filed by the present respondent No. 1 against the said Ejaz Inayat, an order dated 1-10-2002 was passed by this Court restraining him from acting, representing or stating himself in any manner to be Bishop of Karachi. Counter suit was filed by said Ejaz Inayat (No.279 of 2002). Both the suits are still pending.

12 Per learned counsel for the respondents, on April 10th 2005 a meeting of the managing committee was held in which Mrs. I.

Pearl, Dr. Shireen Martin, Mrs. P. Shakti (respondent No. 16) and Mrs. Freed Shergill (respondent No. 15) were present. This was a meeting of Board Committee of Breton Carey Hostel and the meeting decided that services of present applicant be terminated on the ground of insubordination, gross misconduct and mismanagement. The Committee in this connection considered various complaints received by it from the students and priests. In consequences of this decision of the committee letter of suspension dated 10-4-2005 under the signatures of present respondent No.1 was issued to the present applicant. According to learned counsel, it was when this letter was sought to be served, the present applicant conducted herself in a manner as was alleged in F.I.R No.

44 of 2005. Learned counsel referred to newspapers clipping of daily New Akhbar, Jura'at and Awam of April 15th, Khabrain of April 16, daily Jang of April 15, Awam of April 19th, Khabrain of April 29th, Jura'at of April 26th, daily Dawn of April 15th to contend that the present applicant's conduct as Incharge of Hostel has been very diabolical and had caused serious unrest in the Christian community. Learned counsel further submitted that Executive Committee of the Karachi Diocese in its meeting held on 18-2-2004 resolved to strike off names of all the presbyters from the diocesan rolls who had worked beyond the system and procedure. Consequently, show-cause notice dated March 8th, 2005 was issued to the husband of the applicant. As soon as this show-cause notice was issued, husband of the applicant filed Civil Suit No.283 of 2005 in the Court of IV-Civil Judge, Karachi South, in which suit it was, inter alia, prayed that show-cause notice dated 8-3-2005 be declared as null and void and without lawful authority. This civil suit was dismissed.

13. Learned counsel for the respondents also referred to the first inquiry conducted by Sanaullah Abbasi, T.P.O. Saddar Town, Karachi, and submitted that the said inquiry was conducted behind the back of the respondents without associating the respondents. Per learned counsel, the said inquiry report was slipshod and onesided, which has no legal sanctity in the eye of law. The applicant, per learned counsel, continued to make hue and cry at the behest of Ejaz Inayat and levelled allegations against respondents, as a result of which second inquiry was also conducted by the team of police officials headed by Nayyer Hasnain Zaidi, Additional I.G. Police and the conclusion of such inquiry report reflects that allegations regarding application of the provisions of section 354-A, P.P.C. are prima facie not attracted in the instant case. Findings of the inquiry report suggest that " (i) background of the incident is due to the tussle between Bishop Sadiq Daniel and Ejaz Inayat", "(ii) At best, forcible evacuation of the applicant took place for which her complaint should be registered". Per learned counsel, in order to exert more pressure on the respondents the applicant preferred C.P.No.D-1289 of 2005 in this Court whereby directions were given to the police to register F.I.R in spite of the fact that two F.I.Rs had already been registered in respect of the same incident i.e. F.I.R bearing No.44 of 2005 dated 13-4-2005 and F.I.R No.87 of 2005 dated 27-6-2005.

14. It is contended by the learned counsel for the respondents that though section 354-A, P.P.C. was mentioned in F.I.R No.

169 of 2005 dated 6-12-2005, however, after investigation the charge-sheet No. 67 of 2006 dated 26-5-2006 was submitted before the trial Court wherein section 354-A, P.P.C. was deleted. Accordingly, on 10-12-2005 the respondents i.e. Bishop Sadiq Daniel and others moved pre-arrest bail applications bearing Criminal Bail Applications Nos. 1019 and 1048 of 2005 before the learned District Sessions Judge (South) Karachi, which were duly confirmed vide order dated 4-1-2006. Thereafter, the applicant approached the concerned Magistrate by filing an application under section 190(2), Cr.P.C, on which an order dated 28-10-2006 was passed and the prosecution was directed to add section 354-A, P.P.C. and sent the case to be tried by the Sessions Court.

Bishop Sadiq Daniel and others made an application for consolidation of all the three cases arising out of all the above three F.I.Rs, by filing Criminal Transfer Application No.2 of 2007 before the High Court, which was granted vide order dated 16-4-2007 and the 1st ADJ (South) Karachi was directed to try all the three cases together. Such order was challenged by the applicant through C.P.L.A No.77-K of 2007 in the Hon'ble Supreme Court, which was disposed of vide order dated 31-7-2007 whereby the order of High Court was modified to the extent that the three cases would not be consolidated but would be proceeded with by the same Court side by side. Per learned counsel, thereafter the applicant moved application i.e. Criminal Miscellaneous Application No.59 of 2007 before the trial Court to arrest respondent Bishop Sadiq Daniel and others under section 354-A, P.P.C., as according to the applicant they were not on bail under the said provision of law. On 21-10-2008, Deputy District Attorney at the behest of applicant moved an application before the trial Court for the custody of respondents accused persons. In addition to above said applications, the applicant moved yet another applications i.e. Criminal Miscellaneous Application No. 186 of 2007 before the High Court seeking directions for the trial Court to dispose of the above pending application at an early date. Per learned counsel, on 1-2-2008 Bishop Sadiq Daniel and others obtained protective bail before arrest from the High Court in Criminal Bail Application No.91 of 2008. Such order of protective bail was challenged by the applicant before the Supreme Court in Criminal Petition No.22-K of 2008. Bishop Sadiq Daniel and others moved Criminal Bail Application No. 141 of 2008 before the trial Court in respect of offence under section 354-A, P.P.C. However, instead of granting pre-arrest interim bail the trial Court ordered that "the advocate to be heard." Since there was great apprehension as the interim pre-arrest bail was not granted to Bishop Sadiq Daniel and others, they moved Criminal

Bail Application No. 172 of 2008 before the High Court and obtained interim pre-arrest bail vide order dated 25-2-2008. Thereafter, Criminal Petition No.22-K of 2008 filed by the applicant to question the bail before arrest granted by the High Court was disposed of vide order dated 16-2-2009 and the parties were directed to approach trial Court. Finally, the High Court vide order dated 2-7-2009 directed the trial Court to decide both applications i.e.

Criminal Miscellaneous Application No.59 of 2007 moved by applicant for cancellation of the bail of Bishop Sadiq Daniel and others and Criminal Bail Application No. 141 of 2008 filed by Bishop Sadiq Daniel and others to obtain bail under section 354-A, P.P.C.

Learned ADJ (South) Karachi vide impugned order dated 5-9-2008 dismissed the applicant's application i.e. . Criminal Miscellaneous Application No.59 of 2007 for cancellation of bail before arrest and further observed that Bishop Sadiq Daniel and others need not obtain any bail under section 354-A, P.P.C. as the same has become infructuous. According to learned counsel for the respondents, the above order has been assailed by the applicant through two Criminal Revision Applications Nos. 144 and 145 of 2009 before this Court, which were, in the earlier round of proceedings, partly allowed by the learned Judge of this Court on 25-1-2010 whereby the bail of respondents Sadiq Daniel, Shahzar Shamoon, George Bhatti and Mrs. Claventina Burdge were cancelled, whereas in respect of other respondents the revision applications filed by the applicant were dismissed. The order of this Court was challenged by the applicant before the Hon'ble Supreme Court by Filing Criminal Petitions Nos.30 and 31 of 2010, which were converted into Criminal Appeals Nos.91 and 92 of 2010 and disposed of by the Hon'ble Supreme Court vide order dated 24-2-2010 whereby the order of this Court has been set aside and the matter has been remanded to this Court for decision afresh.

15. Learned counsel for * the respondents has argued that the effect of setting aside the order of this Court by the Hon'ble .Supreme Court with the observations made therein is that the original order of the learned trial Court dated 5-9-2009 for the respondents Nos.1, 2, 3, 4 and 5 stands revived. However, in view of the observations of the Hon'ble Supreme Court, the respondents Nos.1, 2, 3, 4 and 5 have filed Criminal Bail Application No.233 of 2010 before the trial Court, wherein, the respondents Nos.1, 2, 3, 4 and 5 have been granted ad interim pre-arrest bail, which is now pending for confirmation or otherwise. Per learned counsel, learned DDPP moved an application on 1-3-2010 before the learned trial Court to detain the remaining 13 accused persons, who did not move any fresh bail application. The said application was dismissed by the learned trial Court vide order dated 1-3-2010, which order has now been challenged by the applicant in Criminal Revision Application No.48 of 2010. Per learned counsel, as regards Criminal Revision Application No.48 of 2010 is concerned it may be stated that the bail applications of 13 accused persons were even confirmed by the learned Single Judge of this Court in earlier round of proceedings vide order dated 25-1-2010 against which no appeal was filed by the applicant before the Hon'ble Supreme Court, whereas the Hon'ble Supreme Court has also not passed any order to upset the bails granted to 13 accused persons, hence the order of the learned Single Judge of this Court dated 25-1-2010 to the extent of these 13 accused has attained finality. Per learned counsel, in view of legal position stated hereinabove, the learned trial Court was justified to pass the order dated 1st March 2010, which has been impugned by the applicant in Criminal Revision Application No.48 of 2010, which is liable to be dismissed on this account. Per learned counsel, keeping in view the above facts, the scope of Criminal Revision Applications Nos. 144 and 145 of 2009 is now restricted only to determine as to whether this Court could cancel the bail in respect of charges as contained in F.I.R No. 169 of 2005 excluding the offence under section 354-A, P.P.C., whereas fresh bail application in respect of section 354-A, P.P.C. is pending before the trial Court and the same is liable to be decided on its own merits. Learned counsel further submitted that for the purposes of Criminal Revision Applications Nos. 144 and 14 of 2009 only F.I.R. No. 169 of 2005 dated 6- 12-2005 is relevant

and except section 354-A, P.P.C. all the relevant sections in the F.I.R. and its charge-sheet do not fall within the prohibitory clause, whereas maximum punishment is either 2 years, 3 years or 7 years. While concluding his arguments, the learned counsel has argued that this is a case where counter F.I.Rs. have been registered in respect of the same alleged incident, which requires further inquiry into the matter, whereas, there is admittedly an enmity between, the parties and litigation is also pending in Court of law. Per learned counsel, there has been considerable delay in registration of the F.I.R No.

169 of 2005. Whereas the grant of ad interim pre-arrest bail is the discretion of the trial Court, which has been exercised in the instant case keeping in view the contents of F.I.R. and the material available on record i.e. the inquiry reports and statement of witnesses etc. hence, the said discretion may not be disturbed by this Court in the instant proceedings particularly when fresh pre-arrest Bail Applications in respect of the respondents Nos.1, 2, 3, 4 and 5 under section 354-A, P.P.C. are now pending disposal before the trial Court. In support of his contention, learned counsel has placed reliance on the following reported judgments, (i) Tariq Bashir and others v. The State PLD 1995 SC 34, (ii) Mir Ahmad Gul and 2 others v. The State 1996 SCMR 979, (iii) Samina Shafi v. The State 2002 YLR 899, (iv) Qabil v. The State 2011 PCr.LJ 232, (v) Mst. Mumtaz Bibi and others v.

The State 2011 SCMR 355, (vi) Tahir Abbas v. The State 2003 SCMR 426, (vii) Mst. Shafiqan v. Hashim Ali and another 1972 SCMR 682, (viii) Fazal Muhammad v. Ali Ahmed and 3 others 1976 SCMR 391, (ix) Ghulam Hussain v. Muhammad Saleh 1983 SCMR 357, (x) Shoaib Mehmood Butt v. Iftikhar-ul-Haq and 3 others 1996 SCMR 1845, (xi) Shukar Din v. Zafra hayat and others 2002 SCMR 201, (xii) Muhammad Shahzad Siddique v. The State and another PLD 2009 SC 58, (xiii) Muhammad Saleh and another v.

The State 2011 PCr.LJ 120, (xiv) Asmatullah v. The State PLD 2011 178, (xv) Muhammad Salman Shafique v. The State 2011 SCMR 165, (xvi) Muhammad Akbar v. Muhammad Akhtar 2006 YLR 3123, (xvii) Zakaullah v. The State 1976 SCMR 352, (xviii) Shahnaz Bibi v. Gul Khan alias Haji Khan 1999 PCr.LJ 868, (xix) Ayaz Ahmad Khan v. The State PLD 2011 SC 171, (xx) Muzaffar Iqbal v. Muhammad Imran 2004 SCMR 231, (xxi) Muhammad Saeed v. Muhammad Bakhsh and 4 others PLJ 2003 CrI. Cases 871, (xxii) Abid Ali alias Ali v. The State 2011 SCMR 161, (xxiii) Asif Jameel and others v. The State 2003 MLD 676, (xxiv) Rukhsar Ahmad and 3 others v. The State and another 2005 PCr.LJ 988, (xxv) Muhammad Bashir Guraya v. Raja Muhammad Irshad and another 2005 YLR 1220, (xxvi) Sajjad Hussain v. The State PLD 1996 Lahore 286 and (xxvii) Khalil Ahmad and another v. The State 2003 PCr.LJ 1754.

16. I have heard both the learned counsel and perused the record. It is pertinent to note that instant proceedings arise from F.I.R. No. 169 of 2005, which was registered on 16-12-2005 pursuant to directions of this Court in C.P. No.D-1289 of 2005 filed by the applicant. The F.I.R. No. 169 of 2005, amongst other sections also contains section 354-A, P.P.C., however, record shows that subsequently in final challan submitted on 26-5-2006 section 354-A, P.P.C. was omitted and it was substituted by section 354, P.P.C. The applicant being aggrieved by such omission of section 354-A P.P.C. in the final challan, filed an application under section 190(2), Cr.P.C. on 17-8-2006 with the prayer to include section 354-A, P.P.C. Such application was granted by the concerned Magistrate vide order dated 28-10-2006 and section 354-A, P.P.C.

was inserted. Admittedly, this order has not been challenged by the respondents/accused hence still holds the field. The pre-arrest bail granted to the accused persons was confirmed by the learned Sessions Judge Karachi South on 4-1-2006 on the pretext that all the offences shown in the challan are bailable except section 338-A, P.P.C., which is punishable with three years, further more section 354-A, P.P.C. has been substituted by section 354, P.P.C. In view of the

order passed by the Magistrate on application under section 190(2), Cr.P.C, the applicant moved an application before the learned trial Court seeking cancellation of bail granted to the respondents/accused, however, the learned trial Court, vide impugned order dated 5-9-2009 has dismissed the same, once again observing as follows, "the order passed on 4-1-2006 clearly shows that the accused were also granted bail under section 354-A, P.P.C." 17. There is no cavil to the proposition that the parameters for grant of bail and for cancellation of bail are different. Once an accused is granted bail on merits, and the bail granting order is not arbitrary or perverse in such case the bail should not be cancelled, whereas cancellation of bail can only be done on exceptional grounds such as; where accused on bail repeats the offence, hampers investigation, makes efforts to suborn evidence, commits act of violence against prosecution witnesses or try to run away from the jurisdiction of the Court and control of sureties. However, in the instant case it is noted that the bail was granted by ignoring material facts and without considering the merits of the case.

Particularly, the cognizance of an offence falling under section 354-A, P.P.C., which was mentioned in the F.I.R. has not been taken by the trial Court. It will not be out of place to observe that the parameters for grant of pre-arrest bail are different and distinct from the parameters of bail after arrest. The applicant seeking pre-arrest bail has to show that the prosecution has falsely implicated him in the alleged crime in order to cause harm and injury to his reputation, and there is no material available with the prosecution to implicate and connect the applicant with the alleged crime. It appears that trial Court was misled by misconceived facts and misdirected itself by observing that these accused persons have already been granted bail under section 354-A, P.P.C. The Hon'ble Supreme Court has also noted these defects and has observed that since the petitioners and co- accused Zafar Iqbal did not press the application for grant of bail under section 354-A, P.P.C., as such they cannot be treated to be on bail by any Court under this section and the law will take its course accordingly.

18. From tentative assessment of record and perusal of the contents of A.

B D F.I.R., statements of prosecution witnesses recorded under section 161, Cr.P.C. and the inquiry conducted by the superior police officials, it appears that there is sufficient material available on record which connects some of the accused persons with the alleged crime falling under section 354-A, P.P.C. However, since there are number of accused persons who have been nominated in F.I.R. No. 169 of 2005 with different roles, therefore, their cases may be dealt- in accordance with the role assigned to them, and on the basis of material and evidence available against them.

19. On tentative assessment of material available on record, it. may be seen that there is no overt act or any direct role of respondents No. 6 to 18 namely, Raj Kumar, Saith Gill, Jawaidd Khursheed, Riaz Boota, Simon Jan, Emmanuel Victor, Anwer Sarder Khan, Irfan Shareef, Pervaiz Bakat, Mrs. Fareeda Shaer Gill, Mrs. Pimla Zafar Shakti, Anwar Lai Din and James Sardar, in relation to allegations of having committed an offence falling under section 354-A, P.P.C., whereas, to examine as to whether there was common intention of these accused persons to commit an offence falling under section 354-A, P.P.C., the matter requires further inquiry. Since registration of F.I.R. and submission of final challan the matt* has not proceeded, any further as no prosecution witness, including the complainant, has been examined so far, hence at present, there is hardly any material which may connect these accused persons with the alleged crime. No useful purpose will be served by recalling the bail granted to these accused persons by trial Court. Moreover, in the earlier round of proceedings in this Court the bail granted to these accused persons was confirmed and the bail application Of respondents Nos. 1, 2, 3 and 5 only was cancelled. Such order was assailed by the applicant before the Hon'ble Supreme Court, who has remanded the same for fresh decision by observing that

respondents Nos.1, 2, 3 and 5 cannot be treated on bail under section 354-A, P.P.C., whereas no such observations have been made in respect of respondents Nos.6 to 18. Under these circumstances, bail granted to the accused persons by the trial Court does not require any interference by this Court at this stage. However, it is directed that in case of any misuse of concession of bail by these accused persons, the trial Court shall proceed against them in accordance with law.

20. As regards role of respondent No.1, Sadiq Daniel, respondent No.2 Shahzer Shamoon and respondent No.5, Mrs. Claventina Burdge is concerned, from record it appears that they have not been implicated directly for having committed the offence which may attract the provision of section 354-A, P.P.C., whereas, the allegation regarding their common intention to commit offence under section 354-A, P.P.C. requires further inquiry, and can only be established after recording of evidence. Therefore, keeping in view the above circumstances, they may be treated on bail under section 354-A, P.P.C. till recording of evidence of the complainant and at least six prosecution witnesses. However, if at all, after recording of the evidence of these witnesses, some material is brought on record which may connect these accused persons with an offence falling under section 354-A, P.P.C., the applicant shall be at liberty to move an application to the Court for cancellation of bail, which shall be disposed off on the basis of evidence and the material, strictly in accordance with law. Trial Court is directed to record the statement of complainant and at least six prosecution witnesses within a period of two months from the date of this order. It is clarified that observations made hereinabove are tentative in nature and the trial Court shall not be influenced by any such observation while examining the merits of the case.

21. Now I would refer to the role of accused namely, Zafar Iqbal and George Bhatti, as per contents of the F.I.R. the allegations against these two accused persons are as follows; Zafar Iqbal took my shirt (qamiz) upwards and George Bhatti pulled down my shalwar, I begged George Bhatti to have pity on me for the sake of your own daughter Lubna. He said you could not be my daughter I will make you fully naked. Then they started hitting my sensitive organs and naked legs." From perusal of the press conference of the complainant published in a large numbers of daily newspapers on 13th April, 2005 including ' Roznama Nawa-i- Waqt, Roznama Express, Roznama Aghaz, Roznama Jasarat, and Roznama Awam, similar allegations against these two accused persons find mention. Statement of eye-witnesses recorded under section 161, Cr.P.C, particularly statement of Rukhsana Nasim, Shamsunnisa, Surraya Anthony, Zrish Aziz, Zarafshan Haroon, Shumaila Afroze, Saba Younus and Daisy Johan also support the version of the complainant in this regard. The two inquiry reports conducted by superior police officials suggest that on the fateful date the incident took place and F.I.R. was required to be registered, however, reason best known to the police such, F.I.R. was registered only after directions of this Court in C.P.No.D-1289 of 2005. In spite of the fact that the F.I.R. No.

169 of 2005 contained section 354-A PPC, none of the accused nominated therein was arrested. Various proceedings were filed by the accused persons before the trial Court as well as before this Court in the shape of either protective bail, or bail before arrest. I am of the view that there is sufficient material against the above two accused persons, which connects them with the commission of the alleged offence falling under section 354-A, P.P.C., which suggest that the above two accused persons assaulted the complainant, used criminal force against her, and stripped her of her clothes and, in that condition exposed her to the public view. The plea of the accused persons regarding enmity and counter version requires detailed inquiry and recording of evidence which exercise cannot be taken at bail stage, whereas only tentative assessment of the material available on record is to be made at the time of considering bail to the applicant. It may be further observed that the trial Court while confirming pre-arrest bail of the above named accused persons has misdirected itself that section 354-A, P.P.C. has been substituted by

section 354, P.P.C. Similarly, learned trial Court has erred in law and fact while dismissing the application of the applicant seeking cancellation of bail by observing that the order passed on 4-1-2006 clearly shows that the accused were also granted the bail under section 354-A, P.P.C. but the said order has not been challenged at any forum thereafter the complainant remained silent and after about one year filed the present application.

22. It may not be out of place to observe that the parameters for grant of pre-arrest bail are different from the parameters for grant of post-arrest bail. Reference in this regard can be made to the case of Muhammad Safdar v. The State 1983 SCMR 645, Muhammad Azam v. The State 1996 SCMR 71 and Rana Muhammad Irshad v. Muhammad Rafique and another PLD 2009 SC 427.

In the case of Muhammad Safdar and others v. The State 1983 SCMR 645, the Hon'ble Supreme Court while deciding a case pertaining to bail before arrest has held that bail before arrest is not the rule in cognizable offences, and is to be allowed only when it can be shown that the petitioner apprehends arrest due to some ulterior motive on the part of the authorities or other influential persons or there are some peculiar features of the case which would justify the exercise of this discretionary power by the High Court or Sessions Court.

In the case of Muhammad Azam v. The State 1996 SCMR 71, the Hon'ble Supreme Court has held that the right of pre-arrest bail is limited to exceptional and rare cases which are based on mala fide/enmity or where no offence is shown to have been committed on the bare reading of F.I.R.

In the case of Rana Muhammad Irshad v. Muhammad Rafique and another PLD 2009 SC 427, the Hon'ble Supreme Court has given the framework within which and the guidelines according to which, the jurisdiction vesting in the High Courts and the Court of Session, is to be exercised in the following manner:- .

"For the reasons given above, the reply which I would give to the question referred to us is that, in a proper case, the High Court has power under section 498, Criminal Procedure Code, to make an order that a person who is suspected of an offence for which he may be arrested by a Police Officer or a Court, shall be admitted to bail. The exercise of this power should, however, be confined to cases in which, not only is good prima facie ground made out for the grant of bail in respect of the offence alleged, but also it should be shown that if the petitioner were to be arrested and refused bail, such an order would, in all probability, be made not from motives of furthering the ends of justice in relation to the case, but from some ulterior motive, and with the object of injuring the petitioner, or that the petitioner would in such an eventuality suffer irreparable harm.

Ever since then, the said interpretation so made, the said powers so found and the parameters so prescribed, have been regularly and repeatedly coming up for scrutiny by the Superior Courts including this Court. But each time the matter was re-examined, the same was only re-affirmed. The said concept as it was initially propounded; as it developed and as the same stands today, may be summarized for the benefit of us all as under:- (a) grant of bail before arrest is an extraordinary relief to be granted only in extraordinary situations to protect innocent persons against victimization through abuse of law for ulterior motives; (b) pre-arrest bail is not to be used as a substitute or as an alternative for post-arrest bail; (c) bail before arrest cannot be granted unless the person seeking it satisfies the conditions specified through subsection (2) of section 497 of Code of Criminal Procedure i.e. unless he establishes the existence of reasonable grounds leading to a belief that he was not guilty of the offence alleged against him and that there were, in fact, sufficient grounds warranting further inquiry into his guilt; (d) not just this but

in addition thereto, he must also show that his arrest was being sought for ulterior motive, particularly on the part of the police; to cause irreparable humiliation to him and to disagree and dishonour him; (e) such a petitioner should further establish that he had not done or suffered any act which would disentitle him to a discretionary relief in equity e.g. he had no past criminal record or that he had not been a fugitive at law; and finally that; (f) in the absence of a reasonable and a justifiable cause, a person desiring his admission to bail before arrest, must, in the first instance approach the Court of first instance i.e. the Court of Session, before petitioning the High Court for the purpose." 23. Scrutiny of the case-law relied upon by the learned counsel for the respondents accused reveals that all most all the cited cases relate to bail after arrest and do not contain the offence falling under section 354-A, P.P.C. The facts of this case are also distinguishable from the facts of the cited case-laws. This is not a case of counter F.I.Rs. or two version of parties, arising from the same incident i.e. one given by the complainant in F.I.R. and the other given by the opposite party. F.I.R. No. 169 of 2005 has been registered at the instance of the complainant Ghazala Parveen against the accused persons nominated therein, whereas no counter F.I.R. has been registered by such accused persons against the applicant/complainant. F.I.R. No.44 of 2005 was got registered on 13-4-2005 by Constable Naureen against the applicant after two days of the alleged incident, whereas F.I.R. No.78 of 2005 was lodged by the State on 27-6-2005 pursuant to an inquiry conducted by the police officials at the direction of CCPO, Karachi.

From perusal of the impugned order it is seen that the same is based- on misconceived fact that the accused persons have already been granted bail under section 354-A, P.P.C. For this reason alone, the impugned order passed by the trial Court by ignoring the material facts and without discussing the merits of the case is not sustainable in law. Accordingly, the case-law relied upon by the learned counsel for the respondents/accused mostly relates to post-arrest bail and its cancellation hence, the same is of no assistance to the learned counsel for the respondents.

24. In view of hereinabove facts, I am of the opinion that the above named two accused persons namely, Zafar Iqbal and Geroge Bhatti were not entitled to concession of pre-arrest bail. The application moved by the applicant seeking cancellation of bail under the circumstances against above accused persons was justified in law and facts. Accordingly, the impugned order rejecting the application seeking cancellation of bail in respect of accused namely Zafar Iqbal and George H.B.T./G-55/K H Bhatti is hereby set aside, and they will not be treated on bail under section 354-A, P.P.C. The above Criminal Revision Applications are disposed of in the above terms.

25. While parting with this judgment, it is noted with discomfort that no progress whatsoever has been made in the criminal case pending before the trial Court emanating from F.I.R. No. 169 of 2005 as well as cases emanating from F.I.Rs. Nos.44 of 2005 and 87 of 2005. No evidence has been recorded so far and even the statement of complainant has not yet been recorded. The multiplicity of proceedings initiated in this case may not hamper the smooth prosecution of the case by the trial Court.

Accordingly, learned trial Court is directed to proceed with all the pending cases emanating from three F.I.Rs as mentioned hereinabove expeditiously and conclude the trial preferably within a period of six months from the date of receipt of this order. It is expected that both the parties will cooperate in the early disposal of the cases, pending before the trial Court, whereas no delay whatsoever shall be caused by them in this regard.

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